

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Samuel Edison	Team: Squad #06	CCRB Case #: 202208304	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 12/03/2022 1:30 AM, Saturday, 12/03/2022 2:30 AM	Location of Incident: Major Deegan Expressway and the Cross Bronx Expressway; 44th Precinct stationhouse	18 Mo. SOL 6/3/2024	Precinct:
Date/Time CV Reported Mon, 12/05/2022 12:11 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/05/2022 12:11 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Russell Crawford	14997	960400	044 PCT
2. PO Andrew Garcia	07985	972651	044 PCT
3. PO Michael Espenberg	03086	948938	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Ryan Ragoobir	02286	962706	044 PCT
2. PO Jennifer Rivera	05287	967663	044 PCT
3. LT Abram Maldonado	00000	938916	044 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Russell Crawford	Discourtesy: On the Major Deegan Expressway, Police Officer Russell Crawford spoke discourteously to § 87(2)(b)	A . Substantiated
B . PO Russell Crawford	Abuse: On the Major Deegan Expressway, Police Officer Russell Crawford conducted a retaliatory arrest against § 87(2)(b)	B . Substantiated
C . PO Russell Crawford	Abuse: On the Major Deegan Expressway, Police Officer Russell Crawford arrested § 87(2)(b) unlawfully.	C . Substantiated
D . PO Russell Crawford	Abuse: On the Major Deegan Expressway, Police Officer Russell Crawford did not obtain medical treatment for § 87(2)(b)	D . Unfounded
E . PO Andrew Garcia	Abuse: On the Major Deegan Expressway, Police Officer Andrew Garcia did not obtain medical treatment for § 87(2)(b)	E . Unfounded
F . PO Michael Espenberg	Force: At the 44th Precinct Stationhouse, Police Officer Michael Espenberg used physical force against § 87(2)(b)	F . Substantiated

Case Summary

On December 5, 2022, § 87(2)(b) submitted this complaint to the CCRB via telephone.

On December 3, 2022, at approximately 1:30 a.m., PO Russell Crawford and PO Andrew Garcia of the 44th Precinct stopped § 87(2)(b) vehicle on the Major Deegan Expressway. § 87(2)(b) asked for a supervisor to come to the scene, and PO Crawford replied that his supervisor was not “coming out for this bullshit right now.” (**Allegation A: Discourtesy, Substantiated**) PO Crawford handcuffed § 87(2)(b) and placed him under arrest for disorderly conduct. (**Allegation B: Abuse of Authority, Substantiated**). § 87(2)(b) was transported back to the 44th Precinct Stationhouse and was released after being issued a Desk Appearance Ticket for disorderly conduct by PO Crawford (**Allegation C: Abuse of Authority, Substantiated**). While being transported back to the precinct and at the precinct, the officers allegedly refused his request to provide medical assistance for him (**Allegation D and E: Abuse of Authority, Unfounded**). § 87(2)(b) stayed at the stationhouse to file a civilian complaint for the incident, and PO Michael Espenberg of the 44th Precinct shoved him multiple times after escorting him outside (**Allegation F: Force, Substantiated**). § 87(2)(b) filled out a civilian complaint form and left the stationhouse without further incident.

BWC was obtained and is located in IAs #45-47 (BR 01-03). Stationhouse footage was obtained but was not for the time that the incident occurred. § 87(2)(b) received a summons for speeding and a DAT for disorderly conduct.

Findings and Recommendations

Allegation (A) Discourtesy: On the Major Deegan Expressway, Police Officer Russell

Crawford spoke discourteously to § 87(2)(b)

Allegation (B) Abuse of Authority: On the Major Deegan Expressway, Police Officer Russell

Crawford conducted a retaliatory arrest against § 87(2)(b)

Allegation (C) Abuse of Authority: On the Major Deegan Expressway, Police Officer Russell

Crawford arrested § 87(2)(b) unlawfully.

PO Crawford’s BWC (BR 01), beginning at the 13:45 minute mark, showed § 87(2)(b) ask to speak with a sergeant after PO Crawford issued him a summons for driving over the speed limit. PO Crawford told him that he would need to go to the precinct for that, and he verbally provided § 87(2)(b) with the address to the precinct. At the 14:45 minute mark, PO Crawford went back to his vehicle, and § 87(2)(b) exited his vehicle and began walking towards PO Crawford. § 87(2)(b) continued asking to speak with a sergeant, and, at the 15:20 minute mark, PO Crawford told § 87(2)(b) that a sergeant was not “coming out for this bullshit right now.” At the 15:40 minute mark, PO Crawford told § 87(2)(b) that he would see him back at the precinct, and he began to walk away. § 87(2)(b) replied, “don’t fold,” and PO Crawford turned back around and asked § 87(2)(b) if they had a problem. § 87(2)(b) replied that they did, and PO Crawford told him to back up. § 87(2)(b) replied that he was not going to back up, and PO Crawford asked if he wanted to go back to the precinct in handcuffs. At the 16:00 minute mark, PO Crawford placed § 87(2)(b) in handcuffs and told him that he was being arrested for disorderly conduct. At the 17:10 minute mark, PO Crawford and PO Garcia place a handcuffed § 87(2)(b) in the back seat of their vehicle.

§ 87(2)(b) testified (BR 04) that at approximately 1:30 a.m., he was pulled over by PO Crawford and PO Garcia while driving alone southbound on the Major Deegan Expressway. PO Crawford came up to the driver’s side window and asked § 87(2)(b) for his license and registration. § 87(2)(b) asked about the reason for the stop, and PO Crawford replied that was doing 80 mph in a 40 mph speed limit zone. PO Crawford issued him a summons for speeding, and § 87(2)(b) requested to speak with a sergeant about the situation. PO Crawford replied that § 87(2)(b) would need to go to the precinct to speak with a sergeant, and § 87(2)(b) asked for him to request a sergeant to come

to their location. PO Crawford refused and said that it would be a waste of time. § 87(2)(b) then asked him to at least make the request over the radio, but again PO Crawford refused. PO Crawford began walking back to his vehicle parked approximately ten feet behind § 87(2)(b) vehicle, and § 87(2)(b) exited his vehicle and started walking towards the officers. He continued requesting a sergeant, and PO Crawford told him to step to the side of the road to avoid oncoming traffic. § 87(2)(b) moved further over to the side and continued arguing back and forth with PO Crawford. At that point, § 87(2)(b) was standing a few feet away from PO Crawford, and PO Crawford told him that he would be arrested for disorderly conduct. § 87(2)(b) stuck his hands out and told PO Crawford to arrest him, and PO Crawford pulled his hands behind his back and placed him in handcuffs. PO Crawford and PO Garcia transported him back to the precinct and issued him a Desk Appearance Ticket for Disorderly Conduct.

PO Crawford testified (BR 05) that he and PO Garcia stopped § 87(2)(b) for speeding on the Major Deegan Expressway. after issuing § 87(2)(b) a summons for speeding on the Major Deegan Expressway. PO Crawford obtained § 87(2)(b) license and registration, and he explained the reason for the stop. PO Crawford went back to his vehicle to issue § 87(2)(b) a summons for speeding. Once he finished writing it out, he went back to § 87(2)(b) and gave him a copy of the summons along with his license. At that point, § 87(2)(b) asked to speak with a supervising officer, and PO Crawford explained that he would have to go to the precinct for that because a supervisor was not going to come on the highway for a summons dispute. PO Crawford verbally provided the precinct address, but § 87(2)(b) repeated his request for a supervisor multiple more times. PO Crawford began to respond, but § 87(2)(b) cut him off and rolled up his window mid-sentence. As PO Crawford was walking back to his vehicle § 87(2)(b) exited his vehicle and began arguing back and forth with PO Crawford on the side of the highway. As they were going back and forth, § 87(2)(b) continued approaching PO Crawford until he was within approximately one to two feet of him. At that point, PO Crawford was concerned about the safety of the situation because of his past experiences with having his vehicle struck by oncoming traffic during car stops. PO Crawford repeatedly told § 87(2)(b) to back up away from him, but § 87(2)(b) replied that he was not going to back up. PO Crawford did not recall § 87(2)(b) making any verbal or physical threats during the interaction. However, based on his refusal to comply with the command to back up and § 87(2)(b) much larger stature compared to the two officers, PO Crawford believed that § 87(2)(b) was potentially acting in a combative or violent manner. At that point, PO Crawford decided to place § 87(2)(b) under arrest for disorderly conduct. He ordered § 87(2)(b) to place his hands behind his back and placed him in handcuffs. During his CCRB interview, PO Crawford initially did not recall using any profanity towards § 87(2)(b). However, after being shown his BWC footage of the incident, PO Crawford confirmed that he told § 87(2)(b) that a sergeant was “not coming out for this bullshit right now.” PO Crawford noted that he used profanity at that point because § 87(2)(b) had repeated the same request over ten times, and PO Crawford was trying to show § 87(2)(b) that he meant business.

PO Garcia’s testimony was largely consistent with PO Crawford’s testimony with no notable exceptions (BR 06).

Although § 87(2)(b) did not make an allegation of discourtesy, it was pleaded based on the BWC footage obtained for the incident.

Desk Appearance Ticket #§ 87(2)(b) was issued to § 87(2)(b) for disorderly conduct penal law 240.20 subsection 1, and the narrative states that § 87(2)(b) “with intent to cause disruption did act in a violent and threatening manner towards officers.” (BR 07) The command log noted that § 87(2)(b) was arrested § 87(2)(b) for disorderly conduct, and that he was released § 87(2)(b) after being issued summons #§ 87(2)(b) (BR 08).

Police officers must respect the dignity of each individual and render services with courtesy and civility, Patrol Guide Procedure 200-02 (BR 09). While officers are permitted to use discourteous language during stressful situations, this permission is extended only when scenes are so chaotic that the duty of courteousness and professional behavior should be overridden by the immediate need to maintain order, Disciplinary Case No. 2017-17005 (BR 10).

BWC shows that that PO Crawford used the word “bullshit” while speaking with § 87(2)(b) § 87(2)(b).
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) it is therefore recommended that **Allegation A** be closed as **Substantiated**.

A person is guilty of disorderly conduct when, with the intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof, he or she engages in violent, tumultuous or threatening behavior, obstructs vehicular or pedestrian traffic, or uses abusive or obscene language or makes an obscene gesture in a public place, NY CLS Penal Law § 240.20 (BR 11).

In order to charge a person with disorderly conduct, officers must find that the disruptive statements or behavior made by the person were of a public rather than individual dimension, People v. Baker, 20 N.Y.3d 254 (2013) (BR 12). In order for officers to have probable cause to arrest a person for disorderly conduct, the circumstances must indicate that that the individual was intentionally or recklessly creating a substantial risk that public inconvenience, annoyance, or alarm would occur, People v. Delhall, 131 A.D.2d 870 (1987) (BR 13).

BWC shows that, prior to PO Crawford ordering § 87(2)(b) to back up and subsequently placing him under arrest, he turned around and began to walk back to his vehicle. It was only after § 87(2)(b) stated, “don’t fold,” that PO Crawford turned back around and continued the interaction by asking § 87(2)(b) if they “have a problem.” At that point, PO Crawford had already issued § 87(2)(b) the summons for speeding and the vehicle stop had concluded. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) It is therefore recommended that **Allegation B** be closed as **Substantiated**.

PO Crawford testified that he decided to arrest § 87(2)(b) and issue him a summons for disorderly conduct because he viewed him as a potential physical threat based on his large stature and the fact that he refused to comply with his orders to back up during the interaction on the side of the highway. PO Crawford also testified that by exiting his vehicle and trying to argue with him and PO Garcia on the side of the highway, § 87(2)(b) was obstructing vehicular traffic and creating a potentially dangerous situation. § 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(b) BWC confirms PO Crawford’s testimony that § 87(2)(b) refused to comply when PO Crawford ordered him to back up, it also shows that § 87(2)(b)

never made any quick or aggressive movements § 87(2)(g)

The narrative on the summons written by PO Crawford specifically mentions that the threatening behavior was directed towards the officers rather than the public as a whole. § 87(2)(g)

BWC shows § 87(2)(b) standing on the side of the highway more than several feet away from the nearest driving lane. Furthermore, at no point during the interaction does either officer mention that § 87(2)(b) was obstructing vehicular traffic, and it is not mentioned anywhere in the summons issued to § 87(2)(b) or any other police documentation about the incident. § 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **Substantiated**.

Allegation (D) Abuse of Authority: On the Major Deegan Expressway, Police Officer Russell Crawford did not obtain medical treatment for § 87(2)(b)

Allegation (E) Abuse of Authority: On the Major Deegan Expressway, Police Officer Andrew Garcia did not obtain medical treatment for § 87(2)(b)

PO Crawford's BWC (BR 01), beginning at the 22:35 minute mark, showed § 87(2)(b) telling the officers that he was requesting EMS, and PO Crawford replied that they will have an ambulance meet him back at the precinct. § 87(2)(b) asked if the officers were refusing to call EMS, and PO Crawford replied that they were not refusing. At the 47:45 minute mark, the desk sergeant told PO Crawford to request EMS once § 87(2)(b) was secured in a holding cell. At the 48:30 minute mark, PO Crawford brought § 87(2)(b) into a holding cell and told him that EMS was going to come evaluate him inside the holding cell.

PO Crawford's BWC (BR 02), beginning at the 4:00 minute mark, showed him bringing § 87(2)(b) out of the stationhouse in handcuffs. PO Crawford brought § 87(2)(b) to the back of an ambulance and removed his handcuffs.

§ 87(2)(b) testified (BR 04) that after being placed under arrest, PO Crawford and PO Garcia put him in the back of their police vehicle in handcuffs. § 87(2)(b) was still recovering from a cold, and he began to have trouble breathing due to the elevated temperature inside the police vehicle. He asked the officers to request EMS assistance for him, but PO Crawford replied that he did not need EMS. § 87(2)(b) continued to request medical attention, but neither officer responded to his requests. § 87(2)(b) waited inside the police vehicle for approximately 30 minutes before PO Crawford and PO Garcia transported him back to the stationhouse. § 87(2)(b) continued asking for EMS during the drive to the stationhouse, but neither officer responded. When they arrived at the stationhouse, § 87(2)(b) was brought to the front desk, and he was told that the officers would call EMS for him when they had the time. § 87(2)(b) was placed in a holding cell, and he remained there for approximately one hour until EMS arrived. When EMS arrived, PO Crawford brought § 87(2)(b) out of the stationhouse to the back of the ambulance and told him that he was free to go.

PO Crawford testified (BR 05) that after being placed under arrest for disorderly conduct, § 87(2)(b) was placed in the back of the officers' police vehicle. As § 87(2)(b) was being transported

back to the stationhouse in the police vehicle, he told PO Crawford and PO Garcia that he wanted EMS assistance. PO Crawford did not notice any observable injuries on him, and § 87(2)(b) refused to provide a reason for needing EMS. When they arrived at the stationhouse, PO Crawford requested EMS and placed § 87(2)(b) in a holding cell. When EMS arrived, PO Crawford released him from the holding cell with a DAT, but § 87(2)(b) no longer wanted to go to the hospital.

PO Garcia's testimony was largely consistent with PO Crawford's testimony with no notable exceptions (BR 06).

It is undisputed that EMS was requested for § 87(2)(b) and responded to the stationhouse while he was in a holding cell. § 87(2)(b) testified that he requested EMS while in handcuffs on the highway, but that PO Crawford and PO Garcia ignored his requests. However, BWC confirms the officers' testimony that they informed § 87(2)(b) they would request EMS for him at the stationhouse, despite § 87(2)(b) refusing to explain the reason he required medical assistance.

§ 87(2)(g)

§ 87(2)(b) it is recommended that Allegations **D** and **E** be closed as **Unfounded**.

Allegation (F) Force: At the 44th Precinct Stationhouse, Police Officer Michael Espenberg used physical force against § 87(2)(b)

PO Garcia's BWC (BR 03), beginning at the 7:15 minute mark, showed PO Espenberg physically escorting § 87(2)(b) out of the precinct after he refused to listen when told not to use his phone inside the precinct. § 87(2)(b) walked up to PO Espenberg and began to say something, but PO Espenberg shoved § 87(2)(b) backwards in the chest. § 87(2)(b) moved backwards a few feet, and then walked back up to PO Espenberg and took out his phone.

PO Crawford's BWC (BR 02), beginning at the 7:30 minute mark, showed § 87(2)(b) holding his phone and standing face to face with PO Espenberg directly outside of the front entrance to the stationhouse. There were approximately four other officers standing within a few feet of § 87(2)(b) and PO Espenberg. § 87(2)(b) asked if PO Espenberg pushed him, and PO Espenberg replied that he did. At the 7:45 minute mark, § 87(2)(b) held up his phone and pointed the camera lens at PO Espenberg. § 87(2)(b) asked if PO Espenberg pushed him out of the precinct, and PO Espenberg replied that he did it because he was trespassing. § 87(2)(b) said that he was not trespassing because the stationhouse is a public place, and PO Espenberg replied that it is not. § 87(2)(b) told PO Espenberg to push him again, and PO Espenberg shoved him backwards in the chest and told him to leave. § 87(2)(b) walked back up to PO Espenberg and replied that PO Espenberg needed to make him go and said to push him again. PO Espenberg pushed § 87(2)(b) backwards again and told him he had no business in the stationhouse and should not come back inside.

§ 87(2)(b) testified (BR 04) that after being released from custody by the ambulance outside, § 87(2)(b) went back into the stationhouse to obtain the names and shield numbers of the officers involved in the incident. § 87(2)(b) stood by the civilian waiting area at the front and was holding his phone. There were multiple officers a few feet away from him, and one of the officers told him he was not allowed to record inside the stationhouse. § 87(2)(b) replied that he was not recording on his phone, and multiple officers rushed at him and started grabbing him. The officers pushed him backwards out of the precinct and told him he was not allowed to use his phone inside the stationhouse. Once outside, § 87(2)(b) walked up to one of the officers involved, PO Espenberg, and asked why he had been physically removed from the stationhouse. PO Espenberg started pushing § 87(2)(b) backwards in the chest, and § 87(2)(b) took out his phone to record the interaction. Eventually, the officers went back into the stationhouse and left § 87(2)(b) outside.

PO Crawford testified (BR 05) that when EMS arrived to take § 87(2)(b) to the hospital, § 87(2)(b) changed his mind and stated that he instead wanted to fill out a civilian complaint for the incident. While PO Crawford was preparing the civilian complaint form paperwork, PO Crawford observed commotion going on between § 87(2)(b) and a group of officers. PO Crawford was not paying close attention to the interaction, but the officers seemed to be telling § 87(2)(b) that there was a sign prohibiting the use of phones inside the stationhouse. PO Crawford did not remember how § 87(2)(b) was removed from the stationhouse.

PO Garcia's testimony was largely consistent with PO Crawford's testimony with no notable exceptions (BR 06).

PO Espenberg testified (BR 14) that he escorted § 87(2)(b) out of the precinct because he was not listening to other officers telling him not to use his phone inside the stationhouse. § 87(2)(b) did not physically resist, but it was clear that he did not want to leave the stationhouse. Once they were outside the stationhouse, § 87(2)(b) got up in PO Espenberg's face in a way that suggested he was trying to fight, and PO Espenberg pushed him backwards in the chest. § 87(2)(b) walked forward and got into PO Espenberg's face again, and PO Espenberg pushed him backwards in the chest again. PO Espenberg acknowledged that § 87(2)(b) was in a public space once he was outside of the stationhouse, but he clarified that he pushed § 87(2)(b) because he was concerned for his safety if § 87(2)(b) became physical, and he wanted to create separation between them.

Officers may use force when it is reasonable to ensure the safety of a member of the service or a third person. In situations where it is not safe or appropriate to use de-escalation techniques, officers will use only the reasonable force necessary to gain control of a subject. In determining whether the use of force is reasonable, some of the following factors should be considered: nature and severity of the circumstance, actions taken by the subject, immediacy of the perceived threat or harm to the subject or member of service, number of subjects in comparison to officers, and size or build of subject in comparison to officers. Patrol Guide Procedure 221-01 (BR 15).

BWC confirms that PO Espenberg pushed § 87(2)(b) in the chest multiple times after § 87(2)(b) had already been removed from the stationhouse and was outside on the street. § 87(2)(g)

§ 87(2)(b) BWC shows § 87(2)(b) walking up to PO Espenberg, they stand face to face with each other for approximately 30 seconds talking back and forth while § 87(2)(b) is using his phone. It is not until § 87(2)(b) urges PO Espenberg to push him again that PO Espenberg pushes him backwards in the chest multiple times. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation F** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- PO Crawford has been a member of service for seven years and has been a subject in eight CCRB complaints and 27 allegations, of which two were substantiated (BR 17).
 - 202103696 involved a substantiated allegation of a vehicle search and seizure of property. The board recommended and the NYPD imposed Command Discipline A.
- PO Garcia has been a member of service for one year and this is the first CCRB complaint to which he has been a subject (BR 18).
- PO Espenberg has been a member of service for 12 years and has been a subject in eight CCRB complaints and 14 allegations, of which one was substantiated (BR 19).
 - 201108251 involved a substantiated allegation of a vehicle search. The board recommended charges and the NYPD imposed instructions as discipline.

Mediation, Civil, and Criminal Histories

- This case was not suitable for mediation.
- As of March 22, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (BR 20).

- § 87(2)(b) [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: 6

Investigator: Samuel Edison Investigator Edison 01/29/2024
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Peña January 29, 2024
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date